

Baij Nath Prasad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 February 2017 · Writ-C No. 4974 of 2017 · **Writ dismissed; petitioner left to Clause 6.5.**

HEADNOTE

A writ raising a dispute about a Power Corporation bill is dismissed where Clause 6.5 of the U.P. Electricity Supply Code, 2005 affords a remedy. The consumer may still invoke that clause; if he does, the authority is expected to decide at an early date.

FACTUAL SUMMARY

Baij Nath Prasad filed Writ-C No. 4974 of 2017 in the Allahabad High Court against the State of U.P. and the Power Corporation, raising a dispute about a bill issued by the Corporation. Counsel for the Corporation submitted that the petitioner had a remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Division Bench of Dilip Gupta and Umesh Chandra Srivastava, JJ. heard the matter on 3 February 2017.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — Clause 6.5 remedy

HOLDING

Where the petitioner disputes a bill issued by the Power Corporation, a writ petition is dismissed because a remedy exists under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The consumer remains free to avail that remedy, and if he does so a decision is expected at an early date. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL

The Court did not examine the bill on merits and left the dispute to Clause 6.5. ¶ 1